CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

Application no. 6285/03
by Siyavush ISMAYILOV
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 7 June 2007 as a Chamber composed of:

Mr C.L. ROZAKIS, *President*,
Mr L. LOUCAIDES,
Mrs N. VAJIĆ,
Mr K. HAJIYEV,
Mr D. SPIELMANN,
Mr S.E. JEBENS,
Mr G. MALINVERNI, *judges*,
and Mr S. NIELSEN, *Section Registrar*,

Having regard to the above application lodged on 26 July 2002,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Siyavush Ismayilov, was an Azerbaijani national who was born in 1950 and lived in Baku. He was represented before the Court by Mr S. Aliasgarov, a lawyer practising in Baku. The Azerbaijani Government ("the Government") were represented by their Agent, Mr C. Asgarov.

The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

On 5 January 2002 a group of persons, including the applicant (collectively, "the founders"), established a trade union named "Independent Trade Union of Transporters" ("*Nəqliyyatçıların Müstəqil Həmkarlar İttifaqı*") and adopted its foundation documents.

As any legal entity in Azerbaijan, including trade unions, acquires legal personality only after the state registration by the Ministry of Justice ("the Ministry"), on 29 January 2002 the founders filed with the Ministry an application for state registration of their trade union.

On 27 May 2002, around four months after the submission of the registration request, the Ministry declined the request by returning the registration documents to the applicant. As a reason for the refusal to register, the Ministry noted that the founders had not paid the full amount of the state registration fee.

After paying the required amount of the registration fee, on 28 June 2002 the founders re-submitted their registration documents to the Ministry. The founders did not receive any reply from the Ministry within the statutory time-limit of five days.

On 18 September 2002 the applicant filed a lawsuit against the Ministry in the Yasamal District Court claiming that the delay in registration was unlawful and demanding compensation for damages.

While the judicial proceedings were pending, on 15 October 2002 the Ministry once again rejected the request. This time, the stated reason for rejection was non-compliance of certain provisions of the trade union's charter with the Law on Traffic and the Law on Non-Governmental Organizations.

Considering that the Ministry's reasons for the rejection were groundless because the Law on Non-Governmental Organizations did not apply to trade unions, the founders attempted to re-submit the registration documents without making the required amendments to the charter. On 21 October 2002 the Ministry refused to accept the documents.

On 19 November 2002 the Yasamal District Court dismissed the applicant's lawsuit against the Ministry, finding that the Ministry's refusal to register the union was based on lawful grounds. The court did not give any legal assessment to the applicant's complaint concerning the unlawfully delayed responses from the Ministry. On 10 March 2003 the Court of Appeal upheld the district court's judgment. On 24 July 2003 the Supreme Court upheld the Court of Appeal's decision.

In the meantime, the founders amended the trade union's charter in accordance with the Ministry's comments of 15 October 2002. On 22 April 2003 they again submitted their registration request together with the new

version of the charter. Having not received a reply for about three-and-a-half months, the applicant filed a new lawsuit against the Ministry, complaining of its failure to respond within the statutory time-limit.

By order of 8 August 2003 the Yasamal District Court refused to accept the applicant's lawsuit due to his missing the statutory time period for filing lawsuits. The court held that by filing a lawsuit in August 2003 the applicant had missed the statutory one-month time-limit for filing lawsuits of this kind. On 11 September 2003 the Court of Appeal upheld the district court's order.

The applicant continued his attempts to contest the allegedly unlawful actions of the Ministry by filing several more lawsuits, but these attempts were unsuccessful.

COMPLAINTS

1. The applicant complained under Article 11 of the Convention that the failure by the Ministry of Justice to register the trade union in a timely manner constituted an interference with his and other trade union members' freedom of association.

2. The applicant further complained that, contrary to Articles 6 § 1 of the Convention, the domestic courts were not independent and impartial in lawsuits filed by private parties against the Ministry of Justice because of the latter's role in selecting candidates for appointment as future judges.

3. Relying on Articles 6 § 1 and 13 of the Convention, the applicant complained that the domestic courts' decisions were arbitrary and that the domestic remedies were ineffective.

THE LAW

On 26 January 2007 the Government informed the Court that the applicant had died in his apartment on 15 December 2006 and submitted a copy of the death certificate. For this reason, the Government asked the Court to strike the application out of the list of cases.

The applicant's representative did not submit any comments in reply to the Court's invitation to comment on the Government's latest submissions and to clarify his position with regard to further proceedings in this case. There is no indication that the late applicant's heirs, if there are any, wish to pursue the application.

In these circumstances the Court concludes that it is no longer justified to continue the examination of the application within the meaning of Article 37 § 1 (c) of the Convention. Furthermore, in accordance with

Article 37 § 1 *in fine*, the Court does not consider that respect for human rights requires it to continue the examination of this application. It recalls that it has already examined the general principles relating to the issues raised in the present application (see *Ramazanova and Others v. Azerbaijan*, no. 44363/02, 1 February 2007, and *Asadov and Others v. Azerbaijan* (dec.), no. 138/03, 2 January 2006). Moreover, a number of other cases raising issues similar to those involved in the present application remain under the consideration of the Court.

Accordingly, the application of Article 29 § 3 of the Convention should be discontinued and the case should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Søren NIELSEN
Registrar

Christos ROZAKIS
President